

M/S Uflex Limited v. State of U.P. and 5 Others

High Court of Judicature at Allahabad · Division Bench · 6 April 2023 · Writ - C No. 11226 of 2023 · **Disposed of; Rs 2 crore deposit and clause 6.5 complaint in four weeks**

HEADNOTE

A dispute over fixed charges in an electricity bill is to be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ, which sought directions to the Consumer Grievance Redressal Forum and the Ombudsman under sections 42(5) and 42(6) because those posts were vacant, was disposed of on a without-prejudice deposit of Rs 2 crores and a time-bound decision of the clause 6.5 complaint, with recovery kept in abeyance for six weeks subject to that deposit.

FACTUAL SUMMARY

M/s Uflex Limited was billed fixed charges for its electricity connection for 27 May 2015 to 31 October 2015, by an invoice dated 2 December 2015 and a letter dated 6 December 2018. It asked the High Court to quash that demand and to direct the Consumer Grievance Redressal Forum and the Ombudsman to decide applications under sections 42(5) and 42(6) of the Electricity Act, 2003, stating that the Forum's Chairman and the Ombudsman posts were vacant. The licensee said the dispute was about correctness of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Fixed charges; correctness of bill

HOLDING

A challenge to the correctness of a bill insofar as it imposes fixed charges is to be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ, seeking mandamus to the Consumer Grievance Redressal Forum under section 42(5) and to the Ombudsman under section 42(6) and certiorari against the invoice and letter, was disposed of on the petitioner agreeing to deposit Rs 2 crores without prejudice and to file a clause 6.5 complaint before respondent no. 4 within two weeks, to be decided within the next four weeks. Subject to that deposit, further recovery remains in abeyance for six weeks and thereafter follows the decision on the complaint. If the petitioner's claim is upheld, the deposit is to be adjusted in future bills. ¶ 1-2

PRINCIPLE TAGS

bill-correctness-under-clause-6.5-not-cgrf-or-ombudsman The Court accepted that a dispute over fixed charges in the bill lies under clause 6.5, though the petitioner had moved the Consumer Grievance Redressal Forum under section 42(5) and the Ombudsman under section 42(6) and said both posts were vacant. ¶ 1

clause-6.5-alternate-remedy-to-writ The writ was disposed of by directing the consumer to file a clause 6.5 complaint before respondent no. 4, to be decided within four weeks, without adjudicating the fixed charges. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER FIXED CHARGES FOR 27 MAY 2015 TO 31 OCTOBER 2015 WERE CORRECTLY IMPOSED

Left to respondent no. 4 on the clause 6.5 complaint. The Rs 2 crore deposit is without prejudice and is to be adjusted in future bills if the petitioner's claim is upheld. ¶ 2

